

Legal Codes Governing Criminal Justice and Family Law in El Salvador

Código Penal (Penal Code)

The **Código Penal** is El Salvador's primary criminal code defining crimes and penalties. The current Penal Code was enacted by Legislative Decree No. 1030 of April 26, 1997 and took effect on April 20, 1998 ¹. It replaced the earlier 1973 penal code in order to align El Salvador's criminal laws with the 1983 Constitution and contemporary realities ² ³. The code is divided into a General Part – which sets out fundamental principles of criminal law (such as legality, culpability, and proportionality of penalties) – and a Special Part listing specific offenses and their sanctions. Major categories of crimes (against persons, property, public order, etc.) and the applicable prison terms or other penalties are defined in this code. The Penal Code has been amended multiple times through legislative reforms to address emerging issues; for example, recent reforms have increased penalties for gang-related offenses and corruption ⁴ ⁵. *(No official English translation of the full code is published; however, select provisions have been unofficially translated by legal organizations (e.g. Chapter II, Articles 133–137 on abortion ⁶).)*

Official source: The text of the Código Penal as enacted in 1997 was published in the *Diario Oficial* (the official gazette). An official copy is available via the Legislative Assembly's repository ⁷. For reference, the **Organization of American States (OAS)** and **UNHCR Refworld** also host the Spanish text of the Penal Code ² ³.

Código Procesal Penal (Criminal Procedure Code)

The **Código Procesal Penal** governs the criminal justice process, from investigation and arrest through trial, sentencing, and appeals. El Salvador transitioned from a predominantly inquisitorial system to an adversarial (accusatory) system in the late 1990s. The current Criminal Procedure Code was established by Legislative Decree No. 733 of October 22, 2008 (published in *Diario Oficial* on January 30, 2009) ⁸, and it entered into force on July 1, 2009 ⁹. This 2008 code replaced the prior code (originally enacted in 1996) in order to modernize and streamline criminal proceedings ¹⁰. The code is organized into five books: **General Provisions, Common Procedure, Special Procedures, Appeals, and Execution of Sentences** ¹¹. It establishes the framework for **oral, public trials** with roles for judges, prosecutors, defense, and victims, and sets rules for evidence, pre-trial measures, trial stages, verdicts, and post-conviction processes. The reform emphasized principles of immediacy, orality, and judicial oversight to ensure a fair and efficient process. The Criminal Procedure Code has been **frequently updated** – for example, reforms in 2022 and 2023 tightened procedural rules to combat organized crime and enable pre-trial testimony of protected witnesses ¹² ⁵. *(There is no official English translation of the full code; practitioners refer to the Spanish text, though summaries exist in academic publications.)*

Official source: The full text as enacted in 2008 was published in the *Diario Oficial* (No. 20, Tomo 382, Jan. 30, 2009) and can be accessed via the Legislative Assembly or official judiciary websites ⁸ ⁹. The **ILO**

NATLEX database and **OAS** provide overviews and the Spanish text of the code, including its structure and subsequent reforms ¹¹ ⁴ .

Código Civil (Civil Code)

El Salvador's **Código Civil** is the foundation of its civil law system, governing private law matters such as persons, family (in general principles), property, obligations, contracts, and succession. The Civil Code currently in force was originally **decreed on August 23, 1859** ¹³ , making it one of the oldest legal codes still operative (though heavily amended). It consists of **2435 articles** organized into **Four Books**: *Book I: Of Persons* (legal personality, civil status, marriage – though many family provisions are now in the Family Code), *Book II: Of Goods (Property) and their Possession, Use and Enjoyment*, *Book III: On Succession by cause of death and inter vivos donations*, and *Book IV: Of Obligations in General and Contracts* ¹⁴ . The Civil Code establishes the rules on topics like ownership and property rights, contracts and torts, inheritance, and general obligations.

Despite its 19th-century origin, the Civil Code has been kept up-to-date through numerous reforms. It has seen **substantive amendments**, for example in 1993 (major family law provisions were moved to the new Family Code), in 1994 (to introduce the Family Procedural Law), in **2004** (various modernizations), and most recently in **2022** ¹⁵ . The 2022 reform (Decree No. 294, Feb. 22, 2022) updated provisions of the Civil Code – reportedly relating to economic rights and other civil transactions – reflecting current social and economic conditions ¹⁵ . *(No official English translation of the Salvadoran Civil Code exists. However, its content is similar in structure to other Latin American civil codes influenced by the Napoleonic Code and Chile's Civil Code; thus, comparative materials in English are available in academic libraries.)*

Official sources: The Civil Code was published in the *Diario Oficial* on April 14, 1860 and has been subsequently published with its reforms in the official gazette. The Legislative Assembly's website and academic repositories provide the consolidated Spanish text (e.g., the UNHCR's Refworld notes the Civil Code “approved in 1859” with reforms through 2022 ¹⁶). The **ILO's NATLEX** database entry summarizes the Code's scope and latest amendments ¹⁴ ¹⁵ .

Código de Familia (Family Code)

The **Código de Familia** is a specialized code that governs family law matters in El Salvador. It was **enacted by Decree No. 677 on October 11, 1993** (published in *Diario Oficial* in December 1993) ¹⁷ as part of a broad legal reform to strengthen family rights. According to Article 1 of the Family Code, “*this Code establishes the legal regime of the family, of minors, and of elderly persons and consequently regulates the relationships of its members and those of these with society and with state entities.*” ¹⁸ In essence, the Family Code covers the formation and governance of family relationships and the rights and duties within the family.

Key topics addressed by the Family Code include: **Marriage** (requirements, rights and duties of spouses, property regimes, nullity and divorce), **Civil unions** (stable de facto unions are given legal recognition per the code and Constitution ¹⁹), **Filiation and Parentage** (establishment of paternity/maternity, including equal rights for children born outside of marriage), **Parental authority** (patria potestad and custody of children), **Adoption** procedures, **Child support and alimony**, and protection of **elderly family members**. The Code reflects constitutional principles such as the equality of spouses (it explicitly states that the family

is founded on the juridical equality of husband and wife ²⁰) and the state's obligation to protect the family and children ²¹ ²² .

The Family Code has been **updated by subsequent legislation**. Notably, in 2009 El Salvador enacted the **Law of Integral Protection of Children and Adolescents (LEPINA)**, which prompted amendments to the Family Code (e.g. transferring certain child protection matters to the new law) ²³ . More recently, in December 2022, the Legislative Assembly passed reforms to the Family Code (Decree No. 591, 2022) to strengthen family protections ²⁴ . These reforms have addressed issues like raising the minimum marriage age (eliminating child marriage exceptions) and expanding the legal tools for family judges to protect victims of intrafamilial violence. *(No official English translation of the Family Code is available; however, the code's main provisions are described in bilingual legal guides and analyses by organizations monitoring family law in El Salvador.)*

Official sources: The Family Code was published in *Diario Oficial* (No. 240, Tomo 321, Dec. 23, 1993) and can be obtained from the Legislative Assembly's archives. The **OAS** digital law library provides a PDF of the code in Spanish ¹⁸ . The **NATLEX** database and Refworld list the code and its amendments ²⁵ . The Salvadoran government (e.g., Ministry of Justice or the National Printing Office) also offers printed editions of the Family Code with updates.

Constitutional Provisions Relevant to Criminal and Family Law

El Salvador's **Constitution of 1983** (as amended) provides the overarching legal principles for both the criminal justice system and family law. Several constitutional articles are directly relevant:

- **Criminal Justice:** The Constitution enshrines fundamental due process and human rights that guide the criminal justice system. For example, **Article 12** guarantees the *presumption of innocence* of any accused person and the right to a public trial with all necessary guarantees for defense ²⁶ . **Article 11** protects the right to life, liberty, property, and possession, stating that no one may be deprived of these rights without being heard in a lawful trial, and it forbids *double jeopardy* (no one can be tried twice for the same cause) ²⁷ . The Constitution also prohibits arbitrary detention: **Articles 13 and 14** require that arrests be made only according to law and limit administrative detention to a maximum of 72 hours before a detainee must be brought before a judge ²⁸ . **Article 13** also provides for the writ of *habeas corpus* to protect individuals against illegal detention or mistreatment in custody ²⁹ ²⁸ . Furthermore, **Article 15** embodies the principle of *nullum crimen, nulla poena sine lege* – no one may be tried or punished except under laws that existed before the act in question (no retroactive application of criminal laws) ³⁰ . In sum, the Constitution requires that criminal prosecutions observe due process, and it assigns the Judicial Organ the exclusive power to impose criminal penalties (Art. 14) ³¹ .
- **Family Law:** The Constitution devotes several provisions to family rights and the role of the state in social matters. **Article 32** proclaims that “*the family is the fundamental basis of society and shall have the protection of the State*,” obligating the government to enact legislation and create institutions to ensure the family's integration, well-being, and development ²¹ . The same article establishes that marriage is the legal foundation of the family and rests on the *equality of rights of both spouses* ²⁰ . Importantly, it also stipulates that the lack of a formal marriage shall not affect the enjoyment of the rights that protect the family (meaning families in fact are also recognized) ³² . **Article 33** directs the law to regulate personal and property relations between spouses and between parents and children

on an equitable basis, and recognizes stable unions of a man and a woman (common-law marriages) for legal purposes ¹⁹. **Article 34** and **Article 35** affirm special protections for children: every child has the right to live in conditions that permit their integral development and the state must protect maternity and childhood ²². The Constitution guarantees that children born outside of marriage have the same rights as those born within marriage, and it obligates parents to care for and educate their children (Art. 36) ³³ ³⁴. It also provides that minors who engage in *antisocial behavior* (delinquency) are subject to a special legal regime separate from adults (Art. 35 paragraph 3) ³⁵ – this constitutional mandate is the basis for the separate juvenile justice system (now governed by the LEPINA law). Overall, these constitutional norms guide the interpretation and application of the Family Code, ensuring that laws uphold family unity, spousal equality, and child welfare in line with constitutional principles ³⁶ ³⁷.

Official sources: The Constitution is published by the **Asamblea Legislativa** and is available on its website and in print; an official English translation (updated through 2014) is provided by the Comparative Constitutions Project ³⁸ ³¹. Key constitutional articles related to criminal procedure (Arts. 11–15) and family (Arts. 32–36) can also be found summarized on the Constitute Project and other legal resources ²⁶ ²¹.

Additional Relevant Laws and Guidelines

In addition to the core codes above, El Salvador has several important statutes and official guidelines that govern aspects of the criminal justice and family law systems:

- **Ley Procesal de Familia (Family Procedural Law, 1994):** Alongside the Family Code, El Salvador enacted a Family Procedural Law by Decree No. 133 of September 14, 1994, to establish the specialized process for family court cases ³⁹. This law introduced *oral proceedings in family matters* and set out the jurisdiction of Family Courts and Juzgados de Paz in family disputes. Its purpose is “to establish the procedural norms to make effective the rights and duties regulated in the Family Code and other related laws.” ³⁹ For example, it details how divorce, custody, child support, and adoption cases are to be initiated and decided, emphasizing conciliation and the best interests of children. The Family Procedural Law has been amended over time (e.g., a 2010 reform expanded the powers of Peace Court judges in urgent protective measures ⁴⁰) to keep procedures efficient and consistent with Family Code reforms.
- **Ley de Protección Integral de la Niñez y Adolescencia (LEPINA, 2009):** This is the **Integral Protection of Children and Adolescents Law**, enacted by Decree No. 839 of March 26, 2009 ²³. LEPINA overhauled the legal framework for juvenile justice and child protection, replacing the old Minor’s Code. It created specialized juvenile courts and procedures, and guarantees children’s rights in accordance with international standards. With LEPINA’s adoption, certain provisions of the Family Code (and related laws) regarding minors were updated or superseded to align with this comprehensive child protection regime ²³. LEPINA is an important complement to the Family Code in matters of child custody, adoption, juvenile delinquency proceedings, and child welfare; it underscores the constitutional mandate that minors in conflict with the law receive a special treatment oriented towards rehabilitation rather than punishment.
- **Código Procesal Civil y Mercantil (Civil and Commercial Procedure Code, 2008):** To modernize civil justice, El Salvador replaced its 1881 civil procedure code with a new Civil and Commercial

Procedural Code, enacted by Decree No. 712 of 2008. This new code came into effect in 2010 and introduced oral trials and streamlined processes for civil and mercantile cases ⁴¹ ⁴². While not explicitly asked in the question, it's a key piece of the *civil law* system framework, ensuring that disputes regarding civil code matters (contracts, property, family lawsuits, etc.) are adjudicated efficiently. The code emphasizes principles similar to the criminal procedure reform – such as orality, immediacy, and judicial management of the process – to fulfill the constitutional guarantee of prompt and full justice in civil matters ⁴³ ⁴². (The **Mercantile Code** and other commercial statutes also complement the civil code, but are beyond the immediate scope of family law.)

- **Judicial Guidelines and Commentaries:** The Salvadoran judicial and legal institutions have developed **official commentaries and manuals** to guide the application of these codes. A noteworthy example is the *Código Procesal Penal Comentado* (Commented Criminal Procedure Code) published in 2018 by the **Comisión Coordinadora del Sector de Justicia** (Coordinating Commission of the Justice Sector) with support from the **Consejo Nacional de la Judicatura (CNJ)** ⁴⁴. This two-volume work provides article-by-article expert commentary on the Criminal Procedure Code as in force (including the 2011 reforms), with input from judges, prosecutors, public defenders and scholars, and serves as an interpretative guide for legal practitioners. Similarly, the CNJ has published a **Commented Penal Code** and a **Commented Civil Procedure Code**, which compile jurisprudential criteria and doctrinal interpretations for those laws ⁴⁵. While these commentaries are not law, they are **officially sanctioned reference materials** used in judicial training and practice. They reflect consensus views and best practices in applying the codes, thereby functioning as de facto guidelines for consistency in the justice system.

- **Ongoing Reforms:** The criminal justice system is subject to ongoing reforms aimed at improving security and efficiency. For instance, in recent years the Legislative Assembly has passed special legislation to combat gangs and organized crime (e.g. classifying maras as terrorist organizations and increasing sentences in the Penal Code) and procedural reforms to facilitate prosecution of those crimes ¹² ⁵. The *Ministerio de Justicia y Seguridad Pública* periodically proposes reforms – such as a 2025 initiative (Decree No. 211 of 2025) that further amended the Criminal Procedure Code to streamline terrorism cases ⁴⁶ ⁴⁷. Likewise, family law is evolving with societal changes; for example, El Salvador's recent adhesion to international conventions has prompted proposals to update family violence laws and to recognize certain rights of de-facto unions. All new laws or reforms are published in the *Diario Oficial*, ensuring they are part of the official legal corpus.

Official sources for these laws and materials: The **Diario Oficial** is the primary source for all legislative decrees (e.g., the Family Procedural Law in D.O. No. 173, Tomo 324, 20-09-1994 ³⁹). The texts of LEPINA and other major laws can be found on government websites (e.g., the Assembly or relevant ministries) and in legal databases. The CNJ has made the commented codes available on its website ⁴⁴. Academic institutions in El Salvador (such as UES and UCA law faculties) often maintain repositories of these codes and their interpretations, which can be considered reputable sources for research. Each of the codes and laws mentioned can also be accessed through international legal databases: for example, **Refworld** and **WIPO Lex** for the codes, and **NATLEX** for labor or social legislation (which includes family protections). These ensure that the information is obtained from **official or academically verified sources**.

Summary: In conclusion, El Salvador's criminal justice system is governed by its Penal Code and Criminal Procedure Code (with constitutional guarantees framing their application), while civil and family law is governed by the Civil Code and Family Code (supplemented by procedural laws and special legislation for

children). All these are official codifications published by the government – primarily the Legislative Assembly and relevant ministries – and are kept current through reforms published in the official gazette. Authoritative texts and translations (where available) are found via government websites and reputable legal repositories ¹ ¹⁸, ensuring that researchers and practitioners can reference the **most up-to-date legal frameworks** governing El Salvador’s criminal and family law systems.

Sources:

- Asamblea Legislativa de El Salvador – Legislative Decrees and Codes (Spanish original texts) ¹ ⁴⁸ ³⁹
- *Diario Oficial* de El Salvador – Official Gazette (publications of 1993, 1994, 1997, 2008, 2009, etc.) ⁸ ⁹
- Ministerio de Justicia y Seguridad Pública – (for penal and security-related laws)
- Corte Suprema de Justicia & Consejo Nacional de la Judicatura – Legal publications and commentaries ⁴⁴ ⁴⁵
- **NATLEX** (ILO) – Summaries of Codes and recent amendments ¹⁴ ¹⁵ ⁴
- **WIPO Lex** – Official text of 1997 Penal Code ¹ ⁴⁸
- **OAS Legal Database** – Spanish texts of Penal, Family, Civil Codes ² ¹⁸
- **UNHCR Refworld** – Documentation of Salvadoran legislation (Civil Code, Family Code, recent reforms) ¹⁶ ⁴⁶
- **Constitute Project** – English translation of 1983 Constitution (with amendments) ²⁶ ²¹ .

¹ ⁷ ⁴⁸ Criminal Code adopted by Legislative Decree No. 1030 of 26 April 199, El Salvador, WIPO Lex <https://www.wipo.int/wipolex/en/legislation/details/3773>

² ³ CÓDIGO PENAL https://www.oas.org/dil/esp/codigo_penal_el_salvador.pdf

⁴ ⁵ ⁹ ¹⁰ ¹¹ ¹² NATLEX - El Salvador - Decreto Legislativo núm. 733 por el que se dicta el Código Procesal Penal. https://natlex.ilo.org/dyn/natlex2/r/natlex/fe/details?p3_isn=84750

⁶ El Salvador's Abortion Provisions - Center for Reproductive Rights <https://reproductiverights.org/maps/provision/el-salvadors-abortion-provisions/>

⁸ I. - Que por Decreto Legislativo No. 733, de fecha 22 de octubre de ... <https://www.jurisprudencia.gob.sv/DocumentosBoveda/R/2/2000-2009/2009/01/A5183.HTML>

¹³ ¹⁴ ¹⁵ NATLEX - El Salvador - Código Civil https://natlex.ilo.org/dyn/natlex2/r/natlex/fe/details?p3_isn=56284

¹⁶ El Salvador: Código Civil. Aprobado en 1859. Incluye reformas de 2022 | Refworld <https://www.refworld.org/es/leg/legis/pejec/1859/es/132138>

¹⁷ ²³ ²⁴ ²⁵ NATLEX - El Salvador - Decreto núm. 677 por el que se sanciona el Código de Familia https://natlex.ilo.org/dyn/natlex2/r/natlex/fe/details?p3_isn=56287

¹⁸ oas.org https://www.oas.org/dil/esp/codigo_de_familia_el_salvador.pdf

19 20 21 22 26 27 28 29 30 31 32 33 34 35 38 El Salvador 1983 (rev. 2014) Constitution - Constitute
https://www.constituteproject.org/constitution/El_Salvador_2014

36 37 39 40 **elsalvador.law.pro**
<https://www.elsalvador.law.pro/Leyes1/decretos/Decreto%20767%20Reforma%20a%20la%20Ley%20Procesal%20de%20Familia.pdf>

41 42 43 **Microsoft Word - CODIGO DE PROCEDIMIENTOS CIVIL Y MERCANTIL.docx**
https://www.oas.org/dil/esp/Codigo_Procesal_Civil_Mercantil_El_Salvador.pdf

44 45 **Código Procesal Penal Comentado - 2018**
<https://www.cnj.gob.sv/index.php/publicaciones-cnj/52-codigo-procesal-penal-comentado-2018>

46 47 **El Salvador: Decreto No. 211 de 2025 - Reformas al Código Procesal Penal | Refworld**
<https://www.refworld.org/es/leg/decre/pleg/2025/es/149575>